



Agentic AI Foundation

AGNTCon + MCPCon Europe

Where the **agentic stack** is being built.

Legal Implications under EU Law When Deploying AI Agents

Agenda

- Introduction
- Three AI Agent Use Cases
- The EU Legal Framework
- Post-Deployment Changes
- Practical Takeaways

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- Contracts, Intellectual Property & Digital Compliance
- Background in Open-Source Software License Compliance

Disclaimers:

- For informational purposes only; not legal advice
- Current legal framework
- Personal perspective, not my client's or any institution's

Three AI Agent Use Cases

AI Schedule Agent	AI Recruitment Agent	AI Customer Service Agent
It organizes a lawyer's schedule based on emails, court notices and calendar availability	It supports the recruitment process by posting job ads, organizing applications alphabetically, and scheduling interviews.	It interacts with customers, text and voice, handles requests and uses different systems to provide assistance; it escalates angry customers to a human operator using voice emotion recognition

The EU Legal Framework

- EU internal market regulation
- Horizontal legislation
- Risk-based approach

**High-risk
AI Use
Cases**
Annex III

**AI in
Regulated
Products**
Annex I

EU AI ACT

AI Systems

**Unacceptable
Risk**

High Risk

Limited Risk

Art. 50 Transparency obligations on certain AI systems

Minimal Risk

No risk-based obligations, Art. 4 AI Literacy

Other EU legal instruments:

Data Protection, Data
Governance, Cybersecurity,
Intellectual Property, Liability,
Digital Markets, Sector-Specific
Rules

Where do the three agents fit?

AI System Classification under the AI ACT

AI Customer Service Agent

Annex III 1(c) + Article 6(2),
Chapter III Section 2, Article 50

AI Recruitment Agent

Annex III 4(a) + Article 6(2)
Exception via Article 6(3),
Article 50

AI Schedule Agent

**Unacceptable
Risk**

High Risk

Limited Risk

Minimal Risk

Complementary EU Legislation

GDPR, Consumer
Protection Laws

GDPR, Employment
context rules

GDPR

Post-Deployment Changes

AI Schedule Agent	AI Recruitment Agent	AI Customer Service Agent
the agents begins confirming meetings directly with clients on lawyer's behalf, including a meeting that overlaps with a court hearing	The agent organizes applications, assesses and ranks candidates based on their suitability for the role	instead of escalating to a human operator, it exploits customer's emotional state and vulnerability to discourage a valid refund claim
POTENTIAL LEGAL IMPLICATIONS UNDER AI ACT		
Direct interaction with clients ↓ Art. 50 (1) Transparency obligation may become applicable	Candidate assessment and ranking ↓ Art. 6(3) derogation may no longer apply Potential high-risk classification may be considered Annex III 4(a)	Potential manipulative behavior and exploitation of vulnerability, likely to cause significant harm ↓ Potential Prohibited AI practice Art. 5(1)(a)(b)

What enabled this change?

Article 3(1) – definition for AI system: machine-based system that is designed to operate with varying levels of autonomy and that **may exhibit adaptiveness after deployment**, and that, for explicit or implicit objectives, infers, from the input it receives, how to generate outputs such as predictions, content, recommendations, or decisions that can influence physical or virtual environments

Article 3(23) – definition for substantial modification* (in the context of high-risk AI system – **Art. 12 Record-keeping: identify situations that may result in a substantial modification**)

A change after placing on the market/put into service, **not foreseen or planned** in the initial conformity assessment and **affects compliance with Chapter III Section 2 (high-risk AI systems Art. 8 - 15) OR the intended purpose**

➡ Requires a new conformity assessment

Article 25 (1) (b): **substantial modification to the system** in such a way that it remains a high-risk AI system

Distributor, importer, deployer or other third-party ➡ becomes the provider – Art. 16 Provider's Obligations

** Check the Commission Guidelines on the practical application of the provisions related to substantial modification (still pending)*

Article 25 (1) (c): **someone modified the intended purpose** so that the system which has not been classified as high-risk, becomes a high-risk AI system

Article 25 (1) (a): **someone rebranded the system** – It is not a modification

Article 43 (4) ➡ **new conformity assessment**

By the initial provider or by the new provider under Art. 25 (1)(b)

Exception: Pre-determined changes ≠ substantial modification

(foreseen or planned – documented in Annex IV) Recital 128 - the system continues to learn

Prohibited AI practice = prohibition, not reclassification

Back to initial design

HIGH-RISK AI SYSTEMS

Provider

- Article 9 – risk management
- Article 10 – data governance
- Article 11 – Technical documentation
- Article 12 – Record-keeping
- Article 13 – Transparency and provision of information to deployers
- Article 14 – Human oversight by design
- Article 15 – Accuracy, robustness and cybersecurity
- Article 17 – Quality management system
- Article 18 – documentation keeping
- Conformity assessment procedures, affix the CE marking, register the system
- Art. 72 & 73 – Post-market monitoring & reporting of serious incidents

Instructions for use



Deployment info
Problems
Serious Incidents



Deployer

Article 26:

- Use the system in accordance with the instructions for use
- Assign human oversight
- Use appropriate input data, where relevant
- Monitor the operation of the system
- Logging keeping
- React when risks/problems are identified
- Inform the provider
- Transparency obligation

Article 40 – Harmonised standards
Presumption of conformity

Practical takeaways

1. Compliance starts at the design stage and continues after deployment
2. Different expertise should be combined from the beginning
3. Assess the risks, identify the requirements, and then start building

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